

25LBCV01830 25LBCV01830

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-08

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Case Number: 25LBCV01830 Hearing Date: September 8, 2026 Dept: S27

1. Parties'

Positions

Defendant propounded RFAs on

Plaintiffs on 12/19/25. As of the filing

of the moving papers, on 5/08/26, Plaintiffs had not served responses. Defendant therefore filed this motion to deem RFAs admitted.

Plaintiffs oppose the motion. Plaintiffs' attorney declares the meet and confer efforts were insufficient and "further" responses and verifications have been served, such that the motion should be denied as moot and no sanctions imposed.

2. Initial

not Further

Plaintiffs' opposition papers

continually refer to the standards relating to motions to compel further responses to RFAs, as opposed to a motion to deem RFAs admitted. The Court notes that it has now received numerous canned oppositions using this incorrect standard. Plaintiffs' attorneys are harshly admonished to cease filing these canned incorrect opposition papers. Continuing to do so may result in imposition of additional sanctions and/or a referral to the State Bar for disciplinary action.

Defendant's moving papers establish

Plaintiffs never served any responses at all to the subject discovery. Despite Plaintiffs referring to their responses as "further" responses, they do not attach the responses and their attorney does not declare that initial responses were ever served. The Court will therefore treat this motion as

a motion to deem RFAs admitted, not one to compel further responses to RFAs. Notably, there is no meet and confer requirement when filing a motion to deem RFAs admitted. Plaintiffs' arguments re: the insufficiency of the meet and confer process are therefore rejected.

3. Substantive Responses

Plaintiffs' attorney declares she served verifications and responses, such that the motion to deem RFAs admitted must be denied as moot.

4. Sanctions

Defendant's notice of motion indicates Defendant seeks imposition of sanctions against Plaintiffs in the amount of \$1010. Plaintiffs argue sanctions should not be imposed because they acted with good cause or substantial justification. Plaintiffs cite CCP §2033.290 in support of this contention. §2033.290 relates, however, to motions to compel FURTHER responses to RFAs. §2033.280 relates to a motion to deem RFAs admitted, and sanctions are absolutely mandatory in connection with §2033.280, with no exception for good cause or substantial justification.

The Court has reviewed Defense Counsel's declaration and finds the requested \$1010 both reasonable and fully supported. Sanctions are sought and imposed against Plaintiffs only and not against their attorney of record. They are ordered to pay sanctions to Defendant, by and through its attorney of record, in the total amount of \$1010, within twenty days.

Defendant is ordered to give notice.